

Case Number:

Background:

NAIH-446-3/2024.

NAIH-4572/2023.

Subject:

Decision

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) issues the following decisions in an official data protection authority procedure initiated ex officio against the Foundation Without Tears for Sick Children (headquarters: 1193 Budapest, Vécsey utca 33., hereinafter: Obligor or Foundation) due to the presumed violation of the provisions of the General Data Protection Regulation:

1.
The Authority establishes that the Obligor violated Article 12(1) of the GDPR during the period specified in point III.4 of the reasoning, as well as Articles 13(1)-(2) by failing to provide adequate general information to the data subjects regarding the processing of their personal data during phone calls.
2.
The Authority establishes that the Obligor violated Article 12(2) of the GDPR during the period specified in point III.4 of the reasoning, by not facilitating the exercise of the data subjects' rights during the phone calls.
3.
The Authority establishes that the Obligor violated the principle of transparency under Article 5(1)(a) of the GDPR regarding the data processing conducted during the period specified in point III.4 of the reasoning, by not providing adequate, actual information to the data subjects regarding the legal basis for the data processing, or by providing misleading information to the data subjects about the legal basis, and that the data subjects did not receive information regarding the data processing either during the phone calls or on the Obligor's website.
4.
The Authority establishes that the Obligor violated Article 6(1) of the GDPR concerning the data processing specified in point III.5 of the reasoning, as it processes the personal data of the data subjects without a valid legal basis.
5.
The Authority establishes that the Obligor violated Article 12(1) and Articles 13(1)-(2) of the GDPR concerning the data processing specified in point III.5 of the reasoning, by not providing information to the data subjects regarding the processing of their personal data during the phone calls.
6.
The Authority, based on Article 58(2)(d) of the GDPR, instructs the Obligor to modify its practice related to the solicitation of donations through phone calls in accordance with the explanations provided, so that it complies with the provisions of the GDPR, meaning that it should only continue the data processing if the appropriate purpose, legal basis, necessity of balancing interests, and other conditions are fulfilled for lawful continuation; in other cases, the database should be deleted, and the Authority should be notified immediately of the measures taken. According to Section 61(6) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), the data affected by the disputed data processing cannot be deleted or rendered invalid until the expiration of the deadline for initiating legal action against the decision or until the court's final decision in case of initiating administrative litigation.
- 7.

Due to the above data protection violations, the Authority officially...

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1,000,000 HUF, that is, one million forints obliges the Obligor to pay a data protection fine.

The Obligor must provide written proof of compliance with the obligation set forth in point 6 above within 30 days following the expiration of the appeal period against this decision, along with supporting evidence, to the Authority.

The fine referred to in point 7 above must be paid within 30 days from the date this decision becomes final to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to "NAIH-446/2024 FINE." If the Obligor fails to meet the deadline for the payment of the fine, they are obliged to pay a late fee. The amount of the late fee corresponds to the statutory interest, which is equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay.

In the event of non-payment of the fine and the late fee, or failure to comply with the obligation set forth in point 6 above, the Authority will order the enforcement of the decision.

No procedural costs were incurred in the proceedings.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by filing a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative lawsuit fee is 30,000 HUF, and the subject matter is subject to fee registration rights. Legal representation is mandatory in proceedings before the Metropolitan Court.

The Authority will publish this decision on its website, indicating the Obligor's identification data.

****REASONING****

I. Procedure and clarification of the facts

1. Background cases

(1)

The Authority received several reports in which the reporters complained that they received unsolicited calls from the Obligor on their secret phone numbers multiple times, urging them to donate, and despite requesting the Obligor to delete their personal data during the calls and in writing, the phone calls continued despite verbal confirmation of deletion and, in some cases, email confirmation.

(2)

Based on the reports, several investigations were initiated against the Obligor, and the Authority also initiated an investigation ex officio under case number NAIH/2020/4620.

(3)

Based on the facts uncovered in these background cases, it was established that the legality of the processing of personal data stored in the Obligor's database and the data processing practices was not sufficiently clarified, thus the legal basis for data processing, its purpose, the adequacy of informing the data subjects, and the assurance of the exercise of rights by the data subjects were not adequately ensured.

1 The form NAIH_K01 serves to initiate the administrative lawsuit: NAIH_K01 form (2019.09.16). The form can be filled out using the general form filling program (ÁNYK program).

<https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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Compliance. For this reason, on March 31, 2023, the Authority initiated an official data protection authority procedure to examine the legality of the processing of personal data stored in the database of the Obligor and the Obligor's data processing practices.

(4)

In the preceding investigative procedures, the Obligor made the following relevant statements for the

decision:

(i)

In the course of its activities, the Obligor processes the personal data of the data subjects, including name, address (postal code, municipality, street), and telephone number.

(ii)

The personal data is voluntarily provided by the data subject themselves during the first contact, which is primarily given during a phone inquiry to the [...] call center, as the data processor (hereinafter: call center). It is clear to the data subject that by disclosing their data, they consent to the processing of their personal data. The data provided by the data subject (name, address, telephone number) is transferred by the call center data processor to the Obligor, which, after passing it on to the courier service (second data processor), delivers the support/thank you letter to the data subject's home.

(iii)

The Obligor maintains a list of donors in its database and occasionally contacts the donors again by phone with the help of its volunteers. Therefore, the processing of personal data is a legitimate interest of the Obligor, which is the basis of its operations. The personal data of the data subjects (name, address, telephone number) is processed based on the legitimate interest legal basis under Article 6(1)(f) of the General Data Protection Regulation for the purpose of enabling the data subject to be a supporter of the Obligor's mission and to provide opportunities for this as often as possible.

(iv)

According to the attached balancing test dated January 1, 2020, "The occasional and preferably continuous collection of donations is essential for the operation of the Foundation. Without addressing citizens and presenting the activities of the Foundation, people cannot decide whether they wish to donate for the stated purpose."

"The phone call is also an opportunity for conversation between the voice calling on behalf of the Foundation and the private individual, which is an important and trust-building method, allowing the data subject to receive immediate answers to their questions. Therefore, it is an elementary and legitimate interest of the Data Controller to establish contact and communicate, and the phone call is the most appropriate method for this."

"The data processor is obliged to request and verify the personal data of the donor data subject, as it is part of the process that the courier personally visits the donor. We can only proceed accurately, reliably, and in a trust-building manner with the data provided by the donor if we verify their data and contact details directly with the donor, and they consent to the processing of their data by voluntarily providing it."

"The request for name, address, and telephone number, as minimized data collection, is indispensable and a basic necessity for carrying out the fundraising and maintaining up-to-date records."

"Fundraising is a personal and confidential matter, which the Data Controller conducts transparently and with the most accurate record-keeping and thoroughness possible. Compliance with the above procedural order is a legitimate interest for fulfilling its duties, therefore, in accordance with its fundamental interests, it considers the method and data processing detailed above to be the only appropriate one."

(v)

According to the Obligor's statement, the purpose of data processing is: maintaining contact with supporters, informing about the Obligor's activities, and fundraising.

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(vi)

Regarding the process of contact, the Obligor stated that it manages the supporter data in a so-called courier service program, from which the received data can be exported and then edited. Supporters who have requested not to be contacted in the future are filtered out based on their phone numbers in an Excel spreadsheet. After the operation, the data is printed and distributed to volunteer colleagues. The volunteer colleague works from this list. They call the supporter who has previously supported the Obligor, thank them for their past support, inform them about the current fundraising effort, and request further support.

(vii)

However, the Obligor's employees now work solely from the existing data. Since 2011, numerous companies and individuals have donated to the Obligor. Initially, the Obligor worked with data available on the internet, using phone numbers, and expanded the donor base by searching for companies found online with the help of online directories.

(viii)

Since August 2016, the Obligor has conducted its fundraising telephone campaign through a call center, and in January 2018, the Obligor entered into a contract with [Company1] for this task (the name of the company has since been changed to that of the call center).

(ix)

According to point 1 of the contract attached in copy by the Obligor, the appointed call center company's "operators will call the phone numbers in the database and request donations from the target individuals. They will verify/request data for the delivery of the value certificate (contact name, mailing address, phone number)." The goal of the campaign is fundraising. The database is provided by the contracting Obligor (composition: those clients who have already donated to the Obligor), which must be handed over to the appointee no later than the day before the calls are made. By mutual agreement, the appointed call center company also provides the opportunity to use its own database.

(x)

At the beginning of the cooperation, the Obligor provided the company with the database. However, it soon became clear that existing supporters preferred to maintain contact with the Obligor's volunteer colleagues. Accordingly, the contract was concluded to allow [Company1] to also use its own public data as a database for finding new donors. The call center company works only from its own database and sends the data of those supporters who wish to donate to the Obligor.

(xi)

The Obligor did not receive information about the call center's database, operations, or work. The Obligor only receives the agreed data (name, address, phone number, delivery date, unique identifier) from the call center partner for those individuals who indicated during the call center's outreach that they wish to donate. The Obligor sends the documents related to the donation to the supporters through a courier service, which were coordinated by the call center partner over the phone.

(xii)

According to the Obligor's statement, the information of the data subjects regarding data processing is provided during the call in such a way that the appointed data processor presented the Obligor's activities to the data subjects who accepted the possibility of donating, provided the Obligor's contact details, and requested the personal data that is absolutely necessary for the donation (name, address, phone number) from the data subject. The courier contacted the supporter based on the address and name, while the Obligor coordinated with the data subject regarding the courier's arrival time based on the phone number.

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Based on the conversation, accepting the contents therein, the affected party voluntarily and of their own accord provided the personal data necessary for the donation, thereby clearly consenting to the processing of their data, and it was also clear to them that the Obligor is the data controller.

(xiii)

During the call center call, the called party received detailed information about the Obligor's activities. If the called party wished to donate, the call center sent the data of the clients wishing to donate to the Obligor in a password-protected Excel spreadsheet.

The spreadsheet recorded the following data/information related to each donor:

Recipient's name/Recipient's company/City/Street/Postal code/Phone number/Desired donation amount (amount for cash on delivery)/Note for the courier service/Unique identifier/Delivery date.

(xiv)

Based on the spreadsheet, the Obligor will send the donor the donor/supporter letter using a courier service. If the donor offers a certain amount, the desired donation amount is listed in the spreadsheet, and accordingly, the Obligor issues a tax certificate for the donor, who will receive a thank-you letter and an informational letter about the Obligor's activities in the envelope. The thank-you letter also contains the Obligor's contact information.

Furthermore, the call center could also provide the Obligor's contact information during any call if requested by the person wishing to donate.

(xv)

The thank-you letter is delivered with the involvement of a courier service.

(xvi)

The Obligor's volunteers will contact the donor again by phone 1-2 months later based on the data received from the call center, thanking them for their support and discussing with the supporter whether they can be contacted in the future and whether they can count on their support.

(xvii)

According to the attached thank-you letter samples and the statements made in the response letter, the following information is included:

According to the Obligor's information, until May 27, 2020 – or on the attached thank-you letter sample, which has the year 2011 indicated in the dotted date – the following information can be read: "By accepting and receiving the Thank-You Letter, you consent to the processing of your data, in accordance with Act CXII of 2011 and EU Regulation 2016/679. Our foundation treats your data confidentially and does not disclose it to third parties!"

According to the Obligor's information, from May 28, 2020, the information was modified as follows:

"By accepting and receiving the Thank-You Letter, you consent to the processing of your data, in accordance with Act CXII of 2011 and EU Regulation 2016/679. Our foundation treats your data confidentially and does not disclose it to third parties! If you request the deletion of your data, please indicate this at the [...] email address or at the [...] phone number, which you can call 24 hours a day."

(xviii) In relation to the procedure for fulfilling the requests of the affected parties, the Obligor stated that the affected parties mostly indicate directly over the phone if they wish to exercise any of their rights, or they usually submit requests to the Obligor via email or postal mail. However, they cannot accept deletion requests made via SMS or communicated to a volunteer colleague over the phone, as these do not reach the Obligor. The appointed call center uses telemarketing software that cannot receive SMS messages; it can only initiate outgoing calls and receive incoming calls. The Obligor

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Employees and volunteers are required to report incoming requests from data subjects to the management of the Obligor; however, according to the Obligor's statement, this has not occurred in all cases, which has resulted in the data processors not being accurately notified regarding the execution of individual requests.

(xix)

In the case of a deletion request, the Obligor proceeds by recording the phone numbers of supporters who have requested deletion in an Excel spreadsheet ("Robinson list"). When the data is imported from the courier service program for re-contacting, the data listed in the Robinson list is filtered out. Supporters requesting deletion are informed about the deletion of their data via email or phone.

(xx)

The Obligor's courier service program also serves as a record of its data processing, in which the data of the data subjects is stored. According to the courier service, the data of clients requesting deletion cannot be deleted from the courier service program; they can only be locked due to the courier service's data retention obligations. These data are stored in an encrypted manner.

(xxi)

The Obligor utilizes data processors during its data processing activities. If a supporter makes a donation to the Obligor, two courier services carry out data processing on behalf of the Obligor: [Company2.] (and [Company3], which was established by splitting off from it) and [Company4].

(xxii)

According to the information contained in the data processing information available on the Obligor's website in March 2021 and July 2021 – based on data available in the web archive – the legal basis for data processing is legitimate interest, consent to the processing of personal data, and fulfillment of a contract. According to the data processing information, the Obligor's main activity is the collection and distribution of donations to those in need.

2. Facts uncovered during the current data protection authority procedure

(5)

Considering that it was probable based on the information uncovered during the preliminary investigations that the Obligor had violated the provisions of the General Data Protection Regulation, the Authority decided on March 31, 2023, to close the investigations and initiate the current data protection authority procedure, with reference to Section 55 (1) a) ab) of the Infotv.

(6)

In response to the Authority's inquiry, the Obligor submitted a statement on April 21, 2023, which was registered under number NAIH-4572-3/2023.

In addition to the answers to the Authority's questions, the Obligor made the following preliminary statements:

(i)

During its operations, the Obligor's volunteers contact individuals by phone to present the Foundation's objectives and seek their assistance in supporting individuals and institutions supported by the Foundation.

(ii)

The volunteers reach out to economic entities and organizations through the contact information published on the internet, as well as to the Obligor's previous donors in order to inform them about the current fundraising.

(iii)

During the phone call, if the contacted person wishes to make a donation, they record the address to which the thank-you letter will be sent via courier service, or from where the donation will be picked up by the courier service in the case of a material or monetary donation, if this has not been done previously.

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(iv) In 2019, the Obligor commissioned a call center service provider to expand its supporter base by contacting the Obligor's previous supporters and seeking additional potential supporters using lawful databases. Due to multiple complaints from supporters regarding the call center's operations, and their indication that they would prefer to be approached by the Foundation's volunteers, the Obligor instructed the call center to focus solely on contacting new supporters going forward.

(v) The call center reached out to potential supporters based on data obtained from unknown sources to the Obligor, and the complaints indicated by the Authority also originated from these individuals. In light of this, the Obligor terminated its cooperation with the call center.

(vi) During the years 2019-2021, the Obligor's work became more difficult due to the COVID pandemic, making it harder to reach supporters; the Obligor's office was closed for a period of time.

(vii) In 2022, when the Obligor's operations were restored, the Obligor also reviewed its data processing activities and processes, and several documents were created that form the basis of lawful operations. Data protection training was conducted for its volunteers, and the materials used by the volunteers were supplemented with data protection references.

(viii) Currently, data is managed both in paper form and electronically, in Excel spreadsheets. The so-called courier program is the data processing interface of the courier service, to which only the data that the data processor is responsible for is uploaded.

(7) In its response letter, the Obligor stated that it maintains its previous statements with the following deviations:

(i) As a data controller, the Obligor processes the personal data of previous supporters, including name, address, and phone number. The Obligor only processes the data of individuals making personal income tax donations if the individual has consented to the disclosure of their name and contact information by marking the relevant checkbox on the tax return.

(ii) Donations can be made in the form of direct transfers to the Obligor's bank account, by handing over cash or in-kind donations to the [...] courier service (hereinafter: courier service), or by offering 1% of personal income tax.

(iii) The Obligor currently recruits donors in two ways: on one hand, it reaches out to its previous supporters to present the Foundation's new goals, and on the other hand, it approaches companies

and organizations to draw their attention to the Foundation's operations and objectives. The Obligor does not currently reach out to unknown private individuals. The Obligor's volunteers contact previous supporters listed in the Obligor's database by phone. During the phone conversation, they present the goals currently supported by the Foundation and request support. If the outreach is successful and the contacted individual wishes to donate, their address is confirmed in the database, where the courier will be sent with a thank-you letter for the purpose of collecting the donation. The Obligor provides the data to the courier service by uploading the data into the courier service's own courier program, thus making it accessible to the courier service.

(iv) The Obligor exclusively utilizes the services of the courier service in relation to the collection of donations. The courier service's task is to collect donations.

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to deliver the thank-you letter to the interested parties and to forward the offered donations to the Obligor.

(v)

The Obligor currently does not collect personal data from individuals; it only uses its own database, which records its previous supporters. In addition, it contacts companies and organizations through their publicly available contact information. Furthermore, there are instances where a contacted company does not donate, but its representative decides to support the Foundation as a private individual. In this case, their data is recorded in the database.

(vi)

The Obligor stated regarding the legal basis of its data processing that it was mistaken in its previous statements, and that the Authority should take into account the contents of this current statement. According to its statement, the Obligor processes the data of its supporters based on legitimate interest, considering that it is in the Obligor's legitimate interest to call for support from potential supporters in order to achieve its goals and finance the supported objectives. Individuals who have previously made donations are considered potential supporters. The contacted parties may exercise their right to object to the data processing at any time. The rights of the affected individuals and the interests of the Obligor have been weighed in this regard, and a balancing test was conducted to support the legality of the data processing.

(vii)

The Obligor has developed a new procedure for handling requests from affected individuals, which has been provided to every individual making phone inquiries. Additionally, a notice has been placed on the website, detailing the forums for submitting requests from affected individuals. This aims to prevent situations where, for example, an affected individual attempts to exercise their rights by sending an SMS, as the phones used by volunteers are not suitable for handling such requests.

Affected individuals have the opportunity to verbally communicate their requests during the phone inquiry. In order for the request to be processed appropriately, a form has been created for the volunteers, the completion of which assists in the recording and processing of the request.

(viii)

As part of the data protection review, a new data processing notice has also been prepared, which has been made available to all volunteers, and training has been organized on the essential information. The notice is also accessible on the website, and volunteers draw attention to its availability at the beginning of the phone conversation.

(ix)

The data is maintained in an Excel spreadsheet on the central computer of the office. From this database, volunteers receive extracts to fulfill inquiries.

The previously mentioned courier program is not the Obligor's program, but that of the courier service's data processor.

(x)

According to the Obligor's statement, in compliance with the order issued by the Authority for the seizure, it has created a backup of the Excel files, which are managed separately from the current database.

(xi)

Furthermore, according to the Obligor's statement, it has a contractual relationship with [...], which allows for the input of prohibited numbers on its business platform, thus preventing volunteers from making calls to those numbers.

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(xii)

The Obligor attached the telephone assistance material for its ongoing fundraising campaign, which is used by volunteers, and a sample thank-you letter that is sent to its supporters.

The telephone assistance material contains the following information regarding data processing:

“Good day, I am calling from the Tear Drop Foundation!

More information about the Foundation and the data processing notice can be found at the following website: www.konnycseppnelkul.hu/

If you have any questions regarding data processing, you can also contact us via email.

[...]”

The attached thank-you letter also includes the following information:

“The Foundation informs you that your personal data is processed in accordance with the provisions of the General Data Protection Regulation (EU) 679/2016 and the Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information, as stated in the data processing notice available at the following link: www.konnycseppnelkul.hu. The data processing notice applies to all natural persons who have made donations to the Foundation and whose donations were not anonymous. The legal basis for the processing of personal data is the legitimate interest of the Foundation (GDPR Article 6(1)(f)). The duration of data processing is 5 years from the issuance of the thank-you letter.

We inform you that regarding your personal data, you may primarily request access to your personal data, their rectification, deletion, or restriction of processing from the Foundation as the data controller by sending an electronic letter to the Foundation's email address, and you may object to the processing of such personal data, as well as you are entitled to the right to data portability and the right to withdraw your consent.”

The Obligor also attached a copy of its data processing register, the data processing notice regarding requests from data subjects, and a copy of the header of its Excel database to substantiate what types of data it processes in its database.

(xiii)

The data processing notice attached by the Obligor under point “7.2. Data Processing Related to the Facilitation of Donations and Donations” describes certain data processing activities conducted in connection with the Obligor's activities, including (i) data processing related to telephone inquiries from donors, (ii) data processing related to the donation of 1% of personal income tax (SZJA), (iii) data processing related to the issuance of thank-you letters and communication with donors, (iv) data processing related to receiving monetary donations via bank transfer, and (v) data processing related to receiving cash and in-kind donations, providing the most important information.

(8)

In response to the Authority's inquiry sent on May 10, 2023, the Obligor made the following substantive statements in its response letter received on May 31, 2023:

(i)

According to the Obligor, it continuously seeks opportunities to establish contact with its supporters and recruit new supporters. It strives to find solutions that comply with the changing regulations and are fair to the supporters. In light of the new regulations, the Obligor “considered how it could reach out to its supporters and how it could recruit new supporters. Unfortunately, we did not document this in writing at that time, which...

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We were alerted to our deficiencies during the review in the year 2022. In this regard, we documented the so-called interest balancing test in writing in 2022. A copy of the interest balancing test dated December 1, 2022, was attached by the Obligor to their declaration.

(ii)

In its interest balancing, the Obligor stated that it finds it necessary to directly approach donors

regarding its activities. It can only continue its activities—whose essence is to support various needy individuals and organizations—through donor support, thus reaching out to supporters is essential for continuing its supportive activities. The Foundation's activities are specifically aimed at supporting third parties; therefore, reaching out to supporters, and in the case of successful outreach, the donation is not only in the interest of the Foundation but also in the interest of the individuals supported by the Foundation. The data controller's assessment of donor needs and the establishment of donor relationships with new individuals would not be possible without processing the data of the affected individuals for this purpose. The necessity of data processing is further supported by the fact that the donations received from outreach are necessary for the support and assistance of third parties. The Obligor emphasized in point 7 of the attached interest balancing test that "The Foundation only contacts the Affected Parties by phone with content aimed solely at donations, and only for the purpose of facilitating donations. The affected parties may be donors who have previously consented to the processing of their data for this purpose, as well as previous, long-term donors, and individuals whose data the Foundation obtains from public sources or databases due to the lack of prior contact. Accordingly, the Data Controller processes the personal data of the Affected Parties necessary for such outreach, and during this data processing, the Data Controller contacts the Affected Party at the contact details previously provided by them with donation-related calls, offers, and other correspondence.

If, based on the Data Controller's position, the contacted person is considered a potential donor for the future based on the information received during the first outreach, then the Data Controller will agree with the contacted party that they will donate a certain amount. The Data Controller will only send information, additional materials, and contact details to the prospective donor if the contacted person explicitly requests it or responds positively following an offer in this regard. In the case of a negative response, no written outreach will occur."

As a result of its interest balancing, the Obligor concluded that "considering that the desired goal cannot be ensured in any other way, particularly with regard to the benefits that can be provided to third parties through data processing; without data processing, it would not be possible to assess donor habits and develop services; the affected individual has the right to object to the processing of their personal data at any time for reasons related to their own situation, including profiling based on the aforementioned provisions; in the nonprofit sector, it is a common practice to process individuals' data of this type in the case of donor outreach to facilitate the establishment of donor relationships; personal data is typically data publicly disclosed by the affected individuals, thus they are not so sensitive; the data controller has taken appropriate measures to mitigate adverse effects on the affected individuals and adheres to the principle of data minimization; therefore, the data controller believes that..."

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assesses that appropriate measures have been developed and adequate guarantees have been undertaken to prevent the actual infringement of the interests of the data subjects, thus the legal basis for data processing complies with the legitimate interest as stated in Article 6(1)(f) of the GDPR, and during the data processing, the interests or fundamental rights and freedoms of the data subjects do not take precedence over the interests of the data controller."

(iii)

The Obligor attached the telephone assistance materials from its previous three campaigns at the request of the Authority, which contain the same information as described in paragraph (7)(xii).

(iv)

According to the Obligor's statement, the data is stored on the Foundation's central computer in an Excel file. From the database, volunteers are only provided with a portion of the data for telephone inquiries to avoid multiple contacts with the same individual.

(v)

The Obligor attached a copy of the backup of its database as stated in paragraph (7)(x). In the Excel record named "Adatbasis_ossz.xlsx," the Obligor stores data types such as "Identifier," "Recipient Company," "Recipient Person," "Recipient Tel," "Country," "Postal Code," "Locality," "Address," as well as personal data including name, address, and phone number. The attached file contains the names,

phone numbers, and addresses of 21,493 "Recipients" (individuals and companies) along with a unique identifier composed of letters and numbers ("Identifier").

(9)

In response to the Authority's inquiry sent on June 26, 2023, the Obligor stated the following in its response letter dated July 14, 2023:

(i)

Until January 2019, the Obligor conducted inquiries solely through its volunteers based on the Foundation's own database.

(ii)

From January 2019, the Obligor's volunteers continued to contact individuals found in the Foundation's own database by phone, while the call center service provider also made calls. The call center used the Obligor's database and, to the Obligor's knowledge, also another database of its own, of which it has no precise information.

(iii)

The call center's engagement ended on October 3, 2021, and since then, only the Obligor's own volunteers have been making telephone inquiries, on the one hand, to the Obligor's previous supporters, and on the other hand, to companies found in publicly available databases.

(iv)

The Obligor is currently not collecting data from individuals, only using its own previous supporters' database. Furthermore, they are reaching out to companies as new supporters to support the Foundation's objectives. However, it sometimes happens that when contacting a company, the person reached as a contact provides a donation as an individual.

(v)

The frequency of the campaigns mainly depends on the volunteers. Since they are the ones who reach out to the supporters, the Obligor can only continue a campaign if volunteers take on this task. Depending on the time period and the inquiries received by the Obligor, multiple campaigns may run simultaneously.

(vi)

The number of contacted individuals varies, primarily depending on the supported cause. For hospitals or larger causes, fundraising can last for an entire year, but for example, there are usually only a few weeks of campaigns related to holidays.

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(vii)

The Obligor, at the request of the Authority – indicating how they maintain records of which donor donated when and how much, and attaching a copy of this record – submitted the electronic record containing data for one year and stated in this regard that they can store one year's data online.

The Obligor's attached Excel record named "nyilvantartas_masolata_2023.07.13.xlsx" stores data types such as "Identifier," "Recipient Company," "Recipient Person," "Recipient Phone," "Country," "Postal Code," "Locality," "Address," "Amount," and "Recorded."

Based on the date of "Recording," the record contains data for the period from July 1, 2022, to July 12, 2023, comprising a total of 7491 rows, exclusively related to donations made by natural persons, including data such as name, phone number, address, donated amount, and date of donation.

Under "Identifier," each donor is assigned a unique identifier consisting of 5 letters and 21 numbers. There are no values recorded under the "Recipient Company" column.

II.

Applicable Legal Provisions

(10) According to the provisions of the General Data Protection Regulation (GDPR) as stated in recital (42), if the data processing is based on the consent of the data subject, the data controller must be able to demonstrate that the data subject has consented to the data processing operation. In particular, it is necessary to ensure, with guarantees related to written statements made in other matters, that the data subject is aware of the fact that they have given their consent and to what extent they have done so. In accordance with Council Directive 93/13/EEC, the data controller provides a

pre-formulated consent statement, which must be made available in an understandable and easily accessible form, with its language being clear and simple, and it must not contain unfair terms. For consent to be considered informed, the data subject must at least be aware of the identity of the data controller and the purpose of the processing of personal data. Consent is not considered voluntary if the data subject does not have a genuine or free choice and is unable to refuse or withdraw consent without detriment to themselves.

(11) According to Article 4(7) of the General Data Protection Regulation, “data controller” means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law; according to point 8, “data processor” means the natural or legal person, public authority, agency, or any other body which processes personal data on behalf of the data controller; according to point 11, “the data subject's consent” means any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which they signify their agreement to the processing of personal data relating to them, either by a statement or by a clear affirmative action.

(12) According to Article 5(1) of the General Data Protection Regulation, personal data must be:

a) processed lawfully and fairly, and in a transparent manner in relation to the data subject (“lawfulness, fairness, and transparency”);

According to paragraph (2), the data controller is responsible for compliance with paragraph (1) and must be able to demonstrate such compliance (“accountability”).

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(13) According to Article 6 of the General Data Protection Regulation, the processing of personal data is lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary in order to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

The first subparagraph point f) does not apply to the processing of personal data by public authorities in the performance of their tasks.

(14) According to Article 7(1) of the General Data Protection Regulation, if the processing is based on consent, the data controller must be able to demonstrate that the data subject has consented to the processing of their personal data.

(15) According to Article 12(1) of the General Data Protection Regulation, the data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15-22 and 34 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when providing information addressed to children. The information shall be provided in writing or by other means – including, where appropriate, electronically. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(16) According to Article 12(2) of the General Data Protection Regulation, the data controller shall facilitate the exercise of the rights of the data subject under Articles 15-22. In the cases referred to in

Article 11(2), the data controller shall not refuse to act on a request from the data subject to exercise their rights under Articles 15-22, unless it can demonstrate that it is not in a position to identify the data subject.

(17) According to Article 13(1) of the General Data Protection Regulation, when personal data is collected from the data subject, the data controller shall provide the data subject with the following information at the time of obtaining the personal data:

- a) the identity and contact details of the data controller and, if applicable, of the data controller's representative;
- b) contact details of the data protection officer, if applicable;
- c) the purposes of the intended processing and the legal basis for the processing;
- d) in the case of processing based on Article 6(1)(f) of the General Data Protection Regulation, the legitimate interests pursued by the data controller or a third party;
- e) where applicable, the recipients of the personal data or categories of recipients, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country or international organization, as well as the

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The existence or absence of a compliance decision by the Commission, or in the case of data transfers mentioned in Article 46, Article 47, or the second paragraph of Article 49(1) of the General Data Protection Regulation, the identification of appropriate and suitable safeguards, as well as references to the means of obtaining copies of those safeguards or their availability;

(2) In addition to the information mentioned in paragraph (1), the data controller shall inform the data subject of the following supplementary information at the time of obtaining personal data, in order to ensure fair and transparent data processing:

- a) the duration for which the personal data will be stored, or if that is not possible, the criteria used to determine that duration;
- b) the data subject's right to request access to their personal data from the data controller, to have it rectified, erased, or to restrict its processing, and to object to the processing of such personal data, as well as the data subject's right to data portability;
- c) in the case of processing based on point (a) of Article 6(1) or point (a) of Article 9(2), the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is based on a legal obligation or a contractual requirement, or if it is a prerequisite for entering into a contract, as well as whether the data subject is obliged to provide the personal data and the possible consequences of failing to provide such data;
- f) the fact of automated decision-making as referred to in Articles 22(1) and (4), including profiling, as well as at least in these cases understandable information on the logic involved and the significance of such processing for the data subject, as well as the expected consequences thereof.

(18) For data processing falling under the General Data Protection Regulation, the provisions of the General Data Protection Regulation shall be applied with the supplements specified in Section 2(2) of the Infotv.

(19) According to Section 60(1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(20) According to point (a) of Section 61(1) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in the General Data Protection Regulation in connection with the data processing operations defined in Section 2(2) of the Infotv.

(21) According to Section 71(2) of the Infotv., the Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings.

(22) According to Section 75/A of the Infotv., the Authority exercises the powers specified in Articles 83(2)–(6) of the General Data Protection Regulation, taking into account the principle of proportionality,

particularly by addressing the first violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or processor in accordance with Article 58 of the General Data Protection Regulation.

(23) GDPR Article 58(2)(b) and (g): In exercising its corrective powers, the supervisory authority:

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b) holds the data controller or the data processor liable if their data processing activities violated the provisions of this regulation;

d) instructs the data controller or the data processor to align their data processing operations with the provisions of this regulation - in a specified manner and within a specified time frame, if applicable;

(24) According to Section 61 (2) of the Infotv., the Authority may order the publication of its decision - with the identification data of the data controller and the data processor being made public - if the decision affects a wide range of individuals, was made in connection with the activities of a public authority, or the severity of the legal violation justifies its disclosure.

III.

Decision

1. Subject of the current data protection authority procedure

(25) Several complaints were received regarding the Obligated's data processing in 2019 and 2020, in which the complainants objected that they received unsolicited phone calls urging donations from the Obligated multiple times, despite having requested the deletion of their personal data during the call and in writing (via email), which the Obligated confirmed verbally and in writing. Based on the established facts, in all cases, the complainants had previously supported the activities of the Foundation with their donations, meaning they were listed in the Foundation's database as previous donors.

(26) Based on the information uncovered in the preliminary investigation cases, the Authority established that the legality of the processing of personal data stored in the Obligated's database was not sufficiently clarified, and the legality of its data processing practices (the legal basis for data processing, the purpose, the adequacy of informing the data subjects, and the adequacy of ensuring the exercise of rights by the data subjects) is also questionable. Therefore, the Authority initiated an ex officio data protection authority procedure to examine the legality of the Obligated's data processing practices related to telephone solicitations for donations.

(27) Considering the subject of the data protection authority procedure specified in the previous point, and also considering that according to the Obligated's statement, as of October 3, 2021, it no longer uses call center services for the purpose of collecting new donors, the Authority's current procedure did not extend to examining the legality of the data processing of the data stored in the call center's own separate database that was previously commissioned.

(28) According to the records in the Authority's decision NAIH-4572-1/2023 regarding the initiation of the data protection authority procedure, the data processing period examined in this data protection authority procedure extends from the applicability of the GDPR to the date of initiation of the current data protection authority procedure (March 31, 2023).

2. Qualification of those involved in data processing

(29) According to the definition in Article 4(7) of the GDPR, a data controller is a natural or legal person, public authority, agency, or any other body that determines the purposes and means of processing personal data, either alone or jointly with others, while according to point 8, a data processor is a natural or legal person, public authority, agency, or any other body that processes personal data on behalf of the data controller.

(30) According to the 7/2020 EDPB guidelines regarding the definitions of data controller and data processor (hereinafter: 7/2020 guidelines), the data controller

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Among the conceptual elements described in the previous section, the term "determines" refers to the influence of the data controller on the data processing through the exercise of decision-making authority. The data controller is the entity that determines the key elements of data processing. To establish this, it is necessary to examine the specific data processing operations and to understand who determines them, that is, to investigate why the specific data processing occurred, and who

decided that the data processing should be carried out for a specific purpose.

(31) A crucial building block of the definition of the data controller is the controller's influence on the purposes and means of data processing. Determining the purposes and means involves deciding why and how the data processing takes place. In the case of a specific data processing operation, the data controller is the actor who determines why the data processing should occur—namely, for what purpose, or why—and how this purpose can be achieved, that is, what means should be employed to achieve the purpose. According to Article 4(7) of the GDPR, a legal entity that influences the processing of personal data participates in determining the purposes and means of the processing. The data controller must decide both on the purpose of the data processing and on its means. The data controller cannot agree solely on the determination of the purpose; it must also make decisions regarding the means of data processing. In contrast, a party acting as a data processor can never determine the purpose of data processing.

(32) The Obligor stated during the examination of the preliminary investigation cases that the Obligor qualifies as a data controller, while the call center and the courier service qualify as data processors.

(33) According to the established facts, the Obligor exclusively determined during the foundation's telephone campaigns which data processing operations it wished to carry out using which personal data, which phone numbers would be called on its behalf, and the method of outreach was also selected by the Obligor, as it commissioned a call center, [...] to conduct telephone outreach during the period up to October 3, 2021, while in the subsequent period, it exclusively continued the telephone outreach through its own volunteers.

(34) Furthermore, the Obligor uses the services of [Company3] for the delivery of donations to the Obligor and simultaneously for the delivery of thank-you letters to the donors. In this process, the Obligor provides the data to the courier service by uploading the data into the courier service's program, thus making it available to the courier service.

(35) Accordingly, based on Article 4(7) of the General Data Protection Regulation, the Obligor is considered a data controller in relation to the fundraising through telephone outreach, which was carried out with the services of the call center as a data processor and the courier service as a data processor.

3. The Obligor's data processing practice related to fundraising telephone calls

(36) During the examination of the data processing practice of the Obligor in relation to fundraising telephone calls within the investigated data processing period, the Authority separately evaluated the period when the Obligor also conducted telephone outreach by commissioning a call center, that is, the period up to October 3, 2021, and the subsequent period when the Obligor conducted telephone outreach exclusively through its own volunteers.

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4. Period of phone calls made using a call center

4.1. The data processing practice of the Obligor during the period up to October 3, 2021

(37) The Obligor engaged in fundraising activities by contacting both individuals and companies, organizations via phone calls.

(38) According to the Obligor's statement, initially, the phone numbers used for the calls were collected from publicly available data on the internet, such as online directories and data of companies found online. The Obligor's volunteers worked exclusively from the database created in this manner, contacting by phone those individuals who had previously made donations to the Obligor.

(39) The Obligor periodically contacted, with the help of its volunteers, by phone those who had previously donated and were stored in its records, to request their support again.

(40) According to the Obligor's statement, until January 2019, it exclusively conducted phone outreach through its volunteers based on its own database, which recorded those who had previously made donations.

(41) From January 2019, in addition to the outreach by volunteers, the Obligor also commissioned a call center to carry out its phone campaigns. The call center used both the Obligor's database for its phone outreach and its own database.

(42) This practice of the Obligor was later modified based on feedback from donors, such that only the

Obligor's volunteers re-established contact with those who had previously donated, while the call center recruited only new donors from its own database.

(43) The call center forwarded the data of those individuals who expressed their intention to donate to the Obligor. Subsequently, the Obligor's volunteers contacted these individuals, who had previously made donations, by phone 1-2 months later based on the data received from the call center, effectively integrating these contacts into the existing database.

(44) According to the Obligor's statement, the complaints received by the Authority stemmed from the call center contacting phone numbers sourced from the call center's own separate database, which were unknown to the Obligor. In light of this, the Obligor terminated its cooperation with the call center on October 3, 2021, and from that date onwards, it only maintains contact with those who had previously made donations through its volunteers.

(45) The Obligor indicated its legitimate interest as the legal basis for its data processing under Article 6(1)(f) of the GDPR, while the purpose of the data processing, according to its statement, is to maintain contact with supporters, inform them about the Obligor's activities, and conduct fundraising.

(46) The Obligor's volunteers called previous supporters to thank them for their past support, informed them about the Obligor's current campaigns, and requested further support.

(47) According to the Obligor's statement, the information of the individuals was provided during the call by the call center, whereby the call center staff introduced the Obligor's activities to the individuals wishing to donate, provided the Obligor's contact information, and requested the necessary personal data from those intending to donate: name, address, phone number, which personal data was sent to the Obligor in a tabulated format.

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(48) The Obligor delivered thank-you letters to the donor parties through a courier service. The thank-you letters contained the information described in Section I/1 (4)/xvii.

4.2. Legal Basis for Data Processing

(49) According to the definition in the GDPR, the name, address, telephone number, and other data processed in relation to these are considered personal data of the data subject, while any operation performed on the data, such as collection, storage, and use of the data, is classified as data processing.

(50) For the legality of data processing, the data controller must have a legal basis in accordance with Article 6(1) of the GDPR.

(51) Regarding the legal bases, the Authority emphasizes that a data processing operation can fundamentally have only one valid legal basis. It is unacceptable for the data controller to assign different legal bases to the same data processing purpose—in this case, maintaining contact with supporters, informing about the Obligor's activities, and fundraising—since the simultaneous application of multiple legal bases violates the principles of transparency and fair procedure.

(52) According to the Obligor's statement, the personal data of the data subjects is processed based on the legitimate interest legal basis under Article 6(1)(f) of the GDPR "for the purpose of enabling the data subject to be a donor to support the Foundation's mission and to provide opportunities for this as often as possible."

(53) At the same time, the thank-you letter delivered to the data subjects expressing their intention to donate—based on the attached sample letters—contained information stating (See (5) paragraph /xvii. point) that the legal basis for data processing is the consent of the data subject, which is expressed by the data subject accepting and receiving the thank-you letter.

(54) The Obligor attached a copy of its interest balancing test dated January 1, 2020. According to the document presented, the Obligor's operations require the occasional and preferably continuous collection of donations. Without addressing citizens and presenting the Foundation's activities, people cannot decide whether they wish to donate for the stated purpose. Based on the "interest balancing" outlined in the attached document, the telephone outreach is also an opportunity for conversation between the caller representing the Obligor and the individual, which is an important and trust-building method, allowing the data subject to receive immediate answers to their questions. Therefore, the data controller has a fundamental and legitimate interest in establishing contact and communication, and the telephone call is the most appropriate method for this. According to the provisions of point 3 of the

document, "we can only act accurately, reliably, and in a trust-building manner with the data provided by the donor if we coordinate their data and contact details with the donor themselves, and they consent to the data processing by voluntarily providing this information."

(55) Although there was no information available regarding data processing on the Obligor's website for a significant part of the specified period, as of March 1, 2021, the data processing information available on the Obligor's website mentions "legitimate interest, consent to the processing of personal data, and performance of a contract" as legal bases for data processing.

(56) The Authority examined the existence of legitimate interest under Article 6(1)(f) of the GDPR based on the data controller's statements and the submitted interest balancing. It found that the document lacked an assessment of the rights and freedoms of the data subjects, an analysis of the impact of data processing on the data subjects, and a demonstration and justification of why the interests of the Obligor take precedence over these. The interest balancing essentially involves the data controller.

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The activity was presented, but the comparison of the interests of the data subjects and the data controller was not conducted at all, nor were they identified. Accordingly, the balancing of interests presented for the examined period did not meet the requirements expected by the General Data Protection Regulation, thus the Obligor did not demonstrate, based on Article 5(2) of the General Data Protection Regulation, that its data processing was lawful, transparent, and had an appropriate legal basis.

(57) Based on the above, during the examined period, the legal basis for data processing was not clearly indicated, neither towards the data subjects nor in the Authority's proceedings. The Obligor primarily identified the legitimate interest as the legal basis for its data processing; however, both in its communication with the Authority and in the attached balancing test, two legal bases appeared, in some cases indicating them in parallel concerning the data processing. Furthermore, the data processing information that became available on the Obligor's website in the meantime indicated three legal bases for its data processing: legitimate interest, consent, and performance of a contract. In the Obligor's statements and the documents it attached, the data processing conducted for the purpose of locating donors was also conflated with the data processing related to maintaining contact with those who had previously made donations. The two data processing activities, however, cannot be fully separated, as during a period, repeated contact with previous donors also occurred using a call center, alongside the outreach to the Obligor's volunteers, and simultaneously the call center also recruited new donors based on its own database, and the personal data of the "recruited" new donors were subsequently added to the database of previous donors.

(58) As described above, consent also appears as the legal basis for data processing, according to the information indicated on the thank-you letter delivered via courier, as the legal basis for data processing is the consent of the data subject, which is expressed by the data subject accepting and receiving the thank-you letter.

(59) According to Article 4(11) of the General Data Protection Regulation, one of the most important conditions for valid consent is that it must be preceded by appropriate information, and the data subject must give their consent to the processing of their personal data through a statement or an unambiguous declaration of confirmation.

(60) The (42) preamble of the General Data Protection Regulation also states that the data controller must provide a pre-formulated consent declaration, which must be made available in an understandable and easily accessible form, and its language must be clear and unambiguous, and must not contain unfair conditions.

(61) The guidance on consent under Regulation (EU) 2016/679, Guidance No. 5/2020, as well as the guidance WP259 on consent issued by the Data Protection Working Party established under Article 29 of the Data Protection Directive, confirm that a statement or an act expressing confirmation unambiguously is a prerequisite for valid consent.

(62) Data processing based on the consent of the data subject can only occur if the data subject consents to the processing of their personal data through an unambiguous confirmatory act. This confirmatory act fulfills the data subject's right to informational self-determination: based on

appropriate information, the data subject considers whether to give consent to the specific data processing or not. Consent will be unambiguous if the data controller ensures that the data subject must take an active step for the data processing to occur. Any statement or act that clearly indicates that the data subject has given their consent to the intended processing of their personal data is acceptable for this purpose.

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(63) According to the Authority's position, the receipt of the thank-you letter cannot be considered as the valid consent of the data subject for the further processing of their personal data for purposes not specified on the thank-you letter, meaning it cannot be regarded as a specific, clear expression of the data subjects' will. For the Obligor to process the data subjects' personal data for purposes beyond the specific one-time donation—such as further communication with supporters, information about the Obligor's activities, and fundraising—explicit consent from the data subjects is required.

(64) The Authority holds that the legality of the processing of personal data of the data subjects can be established only if the data controller has a valid legal basis for the processing of personal data for all processing purposes. The fairness and legality of processing the personal data of the data subjects for additional purposes can be determined only if the data subject has received adequate information and the opportunity to decide regarding the processing of their provided personal data for which processing purpose it will be used, meaning the data subject has sufficient information regarding the circumstances of data processing before making the decision to give consent, which was also clearly lacking in this case. The data subjects cannot be denied the option to freely decide, alongside the donation, whether they wish to receive further information about the Obligor's activities or whether the Foundation will contact them in the future via phone regarding current fundraising campaigns.

(65) According to Article 7(1) of the General Data Protection Regulation, in the case of consent as a legal basis, the data controller must also be able to demonstrate that the data subject has consented to the processing of their personal data, which obligation—considering the principle of accountability—includes that the data controller must prove that the individual elements of consent (adequate information, voluntariness, clarity of consent) were properly fulfilled during the acquisition of consent, as well as that it has met the additional requirements set forth by the regulation in connection with consent. These conditions were evidently not fulfilled during the Obligor's data processing for the reasons outlined above. Based on all of this, the Obligor's data processing in this manner—namely, further communication and contact with donors through phone calls—cannot have a lawful basis under Article 6(1)(a) of the General Data Protection Regulation, as all of its conceptual elements are missing.

(66) Based on the above, the Authority established for the period specified in point III./4. that the Obligor violated Article 5(2) of the General Data Protection Regulation and, in this regard, Article 6(1), as it processed personal data unlawfully and transparently without a valid legal basis.

4.3. Adequate Information

(67) For the period specified in point III./4., the submitted scripts and the content of the telephone assistance materials for the fundraising campaigns included instructions regarding the conduct of the calls, stating that "It is mandatory to read the following sentence written in blue to every caller when you have recorded their data: The Foundation, the caller acting on its behalf, and the courier service comply with data protection regulations. Our courier will deliver the support letter to you at the provided address; please hand over only the offered amount to the courier upon receipt."

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(68) According to the attached supplementary material, the following greeting text was to be read at the beginning of the call:

"Good afternoon, I am A.B. and I am looking for X.Y. on behalf of the Foundation Without Tears for Sick Children." During the individual campaigns, the affected individuals were contacted by name via telephone, informed about the current campaign, and then the telephone conversation continued based on whether the individual wished to donate or not. For those who intended to donate, data verification took place, as well as scheduling a time for the courier's arrival, and after the farewell, the mandatory data protection information sentence described in the previous point was read.

(69) According to the Obligor's statement, the courier service contacted the individuals intending to

donate based on the verification, and the individual could send the offered amount/item through the courier service, and a thank-you letter was handed to them at that time, which contained the information described in paragraph (4)/point xvii.

(70) Furthermore, based on the attached samples, the thank-you letter given to the donors included, until May 27, 2020, in addition to the Obligor's contact details, the information that by accepting the thank-you letter, the individual "consents to the processing of their data, in accordance with Act CXII of 2011 and EU Regulation 2016/679. Our foundation treats data confidentially and does not disclose it to third parties." After May 27, 2020, the information included in the thank-you letters was supplemented with the statement that "If you request the deletion of your data, please indicate this at the [...] email address or at the [...] phone number, which can be called 24 hours a day."

(71) During the period specified in point III./4, the Authority reviewed and took screenshots of the content available on the Obligor's website <https://konnycseppnelkul.hu> on several occasions (March 29, 2019, and April 30, 2020), however, information regarding the Obligor's data processing was not available on the Obligor's website during these time states.

(72) According to the page saves available in the web archive, as of March 1, 2021, a data processing information notice was already available on the Obligor's website.

(73) According to Article 12(1) of the General Data Protection Regulation, the Obligor, as the data controller, is obliged to take appropriate measures to ensure that all information regarding the processing of personal data, as mentioned in Articles 13 and 14, and every notification under Articles 15-22 and 34, is provided to the affected individuals in a concise, transparent, intelligible, and easily accessible form, clearly and in plain language.

(74) The system of appropriate information in the GDPR serves to ensure that the affected individual is aware of which personal data will be processed, by which data controller, for what purpose, and how. This is essential for the affected individual to be in a position to effectively exercise their rights as a data subject.

(75) The principle of transparent data processing set out in Article 5(1)(a) of the General Data Protection Regulation requires that the affected individual is informed about the fact and purpose of the data processing. Therefore, one of the essential conditions for the lawfulness of data processing is that the data controller adequately informs the affected individual about all important circumstances of the data processing.

(76) Articles 13-14 of the General Data Protection Regulation specify what information must be provided regarding the processing of personal data. Different rules (content and deadlines) apply depending on whether the data was obtained from the affected individual or from another source, while the formal requirements for the information are guided by Article 12 of the General Data Protection Regulation.

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(77) The Obligor stated regarding the information provided to the data subjects that it was carried out during the call to the data subjects in such a way that the data processor, upon the acceptance of the donation opportunity by the data subject, presented the activities of the Obligor, provided the contact details of the Obligor, and requested the personal data necessary for the donation from the data subject. According to the Obligor's statement, based on the conversation and accepting its contents, the data subject voluntarily and of their own accord provided the personal data necessary for the donation, thereby clearly consenting to the processing of their data and it was also clear to them that the Obligor was the data controller.

(78) Considering that the Obligor's volunteers, according to the Obligor's statement, worked exclusively from the existing database, contacting the data subjects by phone, that is, individuals who had previously made a donation to the Obligor, and based on the attached telephone assistance materials, the called party was known to the Obligor by name, the Obligor became obligated to provide information to the data subjects in accordance with Article 13 of the GDPR.

(79) The Authority established, based on the attached telephone assistance materials – and the information presented in point (68) – that during the call, only the information was conveyed that the data subject was being contacted on behalf of the Obligor.

(80) According to Article 12(1) of the General Data Protection Regulation, the data controller has an

active obligation to provide information to the data subject in a manner that corresponds to the communication channel being used.

(81) Based on the above, it can be established that the Obligor did not provide the essential information listed in Article 13(1) and (2) of the GDPR to the data subjects during the phone call; the data subjects could only learn from the call that they were being contacted on behalf of the Obligor. Furthermore, other information such as the source of the phone number, the possibility to object, legal basis, etc., was not provided by the Obligor to the data subjects, thereby preventing the data subjects from effectively exercising their rights.

(82) In the Authority's view, at the beginning of the phone call – rather than at the very end – a brief informational statement should be provided to the data subjects regarding the most important information related to data processing, particularly indicating the source of the called number. This brief data processing notice should refer to where the data subjects can find the detailed data processing notice on other platforms.

(83) Based on the above, the Authority established for the period specified in III./4 that the Obligor did not provide adequate general information to the data subjects regarding the processing of their personal data during the phone calls, thereby violating Article 12(1) and Articles 13(1)-(2) of the GDPR.

(84) The obligation to provide transparent information and communication imposed on the data controller in Article 12 of the GDPR also extends to measures related to the exercise of the rights of the data subjects. Accordingly, the data controller must take appropriate measures to ensure that information related to the data subject's rights to access, rectification, erasure, restriction, data portability, and objection is provided in a transparent and easily accessible manner.

(85) Data subject requests must be fulfilled based on the conditions set out in Article 12 of the GDPR, that is, as a general rule, within one month. The preamble (59) states that measures must be provided to facilitate the exercise of the rights of data subjects granted by this regulation, including the provision of mechanisms that allow the data subject to request and, where applicable, receive such information free of charge.

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particularly access to personal data, its rectification and deletion, as well as exercising the right to object.

(86) The information provided to data subjects must be easily accessible, which primarily means that the data subject should not have to search for the information; it must be immediately visible to them where and how they can access it.

(87) According to the Obligor's statement, the exercise of data subject rights was provided to data subjects in such a way that they could send their data subject requests to the Obligor's email address or by postal mail. However, the Obligor stated that it could not accept deletion requests made via SMS or indicated during a phone call to the Obligor's volunteer, as these did not reach the Obligor, and the telemarketing software used by the contracted call center could not receive SMS messages, only initiate outgoing calls and receive incoming calls.

(88) Based on the above, it can be established that the data subjects did not receive information about the possibility and method of exercising their data subject rights during the phone call; they only had access to the information available from the greeting text of the phone call – especially if they did not wish to donate – regarding who the call was on behalf of. Furthermore, considering that there was no information available on the Obligor's website regarding data processing for an extended period, the data subjects were limited in exercising their data subject rights based on the information received and available.

(89) Therefore, the Obligor did not facilitate the exercise of the data subjects' rights, thereby violating Article 12(2) of the General Data Protection Regulation.

(90) According to Article 5(1)(a) of the General Data Protection Regulation, the processing of personal data must be lawful and fair, and conducted in a transparent manner for the data subjects. It must be transparent to natural persons how their personal data is collected, used, accessed, or otherwise processed, as well as the extent to which their personal data is processed and will be processed. The data processing, by not providing the data subjects with actual information regarding the legal basis for

processing in accordance with the provisions of the law, which provided information, could have been misleading for the data subjects, as it was not clear to the data subjects providing donations on which legal basis their personal data was actually being processed, whether on the basis of legitimate interest or consent. By this behavior, the Obligor violated the principle of transparency as set out in Article 5(1)(a) of the General Data Protection Regulation.

Furthermore, the fact that the data subjects, on the one hand, did not receive information about the most important information related to data processing during the phone call, and on the other hand, there was no information available on the Obligor's website for a long time that would have ensured the data subjects' awareness and facilitated the exercise of their rights, constitutes a significant deficiency in information, resulting in a violation of the fundamental requirement of transparent data processing. Therefore, the Obligor's above behavior violated the principle of transparency as set out in Article 5(1)(a) of the General Data Protection Regulation.

5. The period affected solely by the phone inquiries conducted by the Obligor

5.1. The Obligor's data processing practice during the specified period

(91) According to the Obligor's statement, telephone fundraising during the specified period occurred in two ways. The Obligor, through its volunteers, seeks out its previous donors.

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The Obligor requests support via phone and seeks out companies and organizations. According to the Obligor's statement, it does not conduct fundraising through outreach to unknown private individuals.

(92) In addition to the above, donations can also be made via direct transfer to the Obligor's bank account or by offering 1% of personal income tax.

(93) The Obligor utilizes courier services during the collection of donations, specifically the services of [Company3] mentioned earlier, whose task is to deliver thank-you letters to donors and to ensure the delivery of the offered cash or in-kind donations to the Obligor.

(94) According to the Obligor's statement, it processes the data of supporters based on legitimate interest, and to support this, it has attached a copy of the interest balancing assessment dated December 1, 2022.

(95) According to the Obligor's statement, it has developed a new procedure for handling requests from data subjects during the specified period, and information regarding data processing has also been placed on the Obligor's website.

5.2. Legal Basis for Data Processing

(96) According to the Obligor's statement, it processes the data of supporters based on legitimate interest, as it is in the Obligor's legitimate interest to call for support from potential supporters, namely individuals who have previously made donations, in order to achieve its goals and finance the supported objectives.

(97) In connection with the legitimate interest legal basis, it is important to emphasize that it does not serve as a justification for the data controller to process personal data at any time and for any reason in the absence of other legal bases. Although it may seem to be the most flexible legal basis, its application entails significant responsibility for the data controller—not only in the narrow sense of processing personal data but also in fulfilling related guarantees. Appropriate consideration, planning, and guarantees must ensure, among other things, that the data subject is aware of the data processing and can object to it, as after the data processing—especially in the case of short-term or one-time data processing, such as a call—all rights of the data subject may become void.

(98) Closely related to the legitimate interest legal basis is the principle of accountability set forth in Article 5(2) of the General Data Protection Regulation, which imposes an obligation on the data controller to fulfill administrative burdens that ensure the transparency, accuracy, and fairness of personal data processing. This is not merely about "paperwork," but rather a substantive task.

(99) It is neither the responsibility of the data subject nor the Authority to identify and justify the purpose of data processing and the legitimate interests on behalf of the data controller during an official procedure. The data controller must specifically justify, assess, and establish guarantees for the purpose and legitimate interests for which it intends to process personal data, broken down to the level of data and purpose. The failure to do so is solely the responsibility of the data controller. After

determining the lawful purpose, but before commencing data processing, the data controller must assess whether the data processing is necessary to achieve the purpose. In this context, it must be examined whether there are alternative solutions available that could achieve the intended purpose without the specific data processing or with less restrictive means compared to the specific data processing.

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If the data controller can reasonably achieve the same result through a less restrictive means or tool regarding the rights to personal data, necessity does not exist, and thus the legal basis under Article 6(1)(f) is not applicable.

(100) According to the Obligor's statement, it has a legitimate interest in soliciting support from potential donors to achieve its objectives and finance supported goals. It states that the rights of the data subjects and the interests of the Obligor have been weighed against each other, and a balancing test has been conducted to substantiate the legality of the data processing. According to the Obligor's statement, the purpose of data processing is to solicit donations from potential supporters.

(101) Regarding the telephone inquiries conducted by the Obligor for the purpose of soliciting donations, as indicated in point 2 of the attached balancing test, the purpose of data processing is to "contact potential donors by phone or email to invite them to donate for its public benefit objectives. The purpose of the data processing conducted for the inquiry is to establish a future supporter relationship or to maintain an existing donor relationship." The Authority notes in this regard that the email address included in the records submitted by the Obligor, which would allow for communication with existing donors via email, is not recorded, thus the indication of this mode of communication among the purposes of data processing is not valid.

According to the information available from the balancing test, the purpose of data processing identified by the Obligor is, according to the Authority's findings, on the one hand, to seek new donors, and on the other hand, to re-establish contact with previously existing donors, meaning that the Obligor continues its telephone inquiries for two different data processing purposes.

In point 7 of the Obligor's balancing test, the Authority believes that further purposes can be identified, as stated in the referenced point, namely that "without data processing, it would not be possible to assess donor habits and develop services," regarding which the Obligor did not provide specific information in its statements to the Authority; however, these can be identified as additional data processing purposes.

(102) In the present case, the balancing test sent by the Obligor in response to the Authority's inquiry, which is presented in point (ii) of paragraph (9), according to the Authority's position, did not support that the data processing is in the legitimate interest of the Obligor, as the Obligor did not identify all purposes when planning its data processing, and consequently, a purpose-by-purpose assessment did not take place; thus, the Obligor did not examine the necessity of data processing concerning all purposes.

(103) In terms of necessity, specific facts must be evaluated considering the given situation – why and how the data processing solves the intended purpose, and on the other hand, an analysis of why other reasonably available means are not suitable for achieving the goal. In this context, the Obligor merely stated that the goal cannot be achieved in another way, but did not demonstrate why other available means are not suitable for achieving the goal for objective reasons.

(104) The balancing test submitted by the Obligor also did not substantively and specifically address why and to what extent the data processing constitutes a limitation on the privacy of the data subjects. It completely lacked the information that if the data subjects support the Obligor with a donation, they will simultaneously be included in the Obligor's donor database, based on which the Obligor will repeatedly contact the data subjects every 2-3 months to invite them to donate again.

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In the balancing of interests, among the guarantees undertaken by the data controller, the Obligor stated that "the Data Controller ensures the right to object to data processing to the widest possible extent, and in the event of an objection, terminates the data processing without further consideration." However, the Obligor did not provide the right to object to the data subjects during the first phone call, nor was the attention of the data subjects specifically drawn to the right to object during the phone call.

According to the attached script, which is described in point (7)/xii., during the phone call, the data subject is only informed about where the data processing information and information about the Obligor can be found on the website. The data processing information available on the website highlights under point 7, after the section "Data processing related to the facilitation of donations and donations," that "The Foundation respectfully draws the attention of Data Subjects to the fact that they may object to the processing of their data in cases of data processing based on the legitimate interest of the Foundation regarding inquiries from the Foundation, and may request that the Foundation no longer contact them. In this case, we kindly ask that they primarily contact the Foundation in writing (via email or postal letter)." However, the Authority's position is that data subjects cannot be expected to search the Obligor's website for information regarding what further data processing may be involved in supporting the Obligor with a donation after the phone call and donation.

Essentially, data subjects cannot expect that the Obligor will contact them again after the donation to encourage them to donate again, and that the Obligor will repeatedly do this every few months until the data subject actively objects against it – specifically in the manner indicated by the Obligor, via email or postal letter – considering that the data subjects received no information about this.

This is further supported by the fact that previous complaints received by the Authority were related to the Obligor or that shortly after their donations, they were contacted again to encourage them to donate, or that they were called again every 2-3 months without even recalling a donation made years earlier.

(105) In the complete absence of a substantive assessment of the interests and expectations of the data subjects, the Obligor could not identify and compare its legitimate interest with the rights and freedoms of the data subjects – which is a legal requirement for the least disturbance of the broader category of "private sphere" beyond the specific rights of the data subjects – thus it could not draw correct conclusions at the end of the balancing of interests. In the balancing of interests, it must be substantiated that the identified legitimate interest takes precedence over the rights and freedoms of the data subjects in a given case. This involves not only explaining why the data controller finds the data processing "good" and "necessary," but also considering all aspects of the data processing, and then evaluating them individually and collectively. It must also be explained why no other means can be chosen, why the given data processing is the most suitable for achieving the goal, and what guarantees the data controller provides to the data subject for the enforcement of their rights. This did not happen in the present case.

As a result of all this, the interests of the data subjects are excessively harmed such that the legitimate interest identified by the data controller is no longer balanced with the rights and freedoms of the data subjects, thus the legitimate interest of the Obligor does not stand.

(106) Upon reviewing the balancing of interests, the Authority also noticed that in point 7 titled "Balancing of Interests," when describing the group of data subjects, it stated that "The data subjects may be donors who have previously consented to the processing of their data for such purposes [...]," meaning that the Obligor continues to phrase it as if it were processing personal data based on consent, whereas according to its statement, the previous

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The legal basis for the data processing related to repeated telephone inquiries to donors is legitimate interest. The Authority emphasizes that a data processing operation can fundamentally have only one valid legal basis. It is unacceptable for the data controller to assign different legal bases to the same data processing purpose, as the simultaneous application of multiple legal bases violates the principle of transparency.

(107) Based on the above, the Authority established for the period specified in point III./5. that the Obligor violated Article 6(1) of the General Data Protection Regulation, as it did not substantiate the existence of its legitimate interest, thereby processing the personal data of the data subjects without a valid legal basis in connection with its telephone inquiries soliciting donations.

5.4. The obligation to provide appropriate information during communication with data subjects

(108) According to the Obligor's statement regarding the period specified in III./5., it contacts its previous donors by phone through its volunteers and requests their support, as well as reaching out to

companies and organizations.

(109) According to the attached script, the text spoken at the very beginning of the call contained information regarding data processing, with the following content:

“Good day, I am XY calling from the Tear Drop Foundation. More information about the Foundation and the data processing notice can be found at the following website: www.konnycsepp.hu/ If you have any questions regarding data processing, you can also reach us by email.”

(110) Based on the script, the Authority found that accurate information regarding the data controller was not provided during the call, and the website mentioned during the call indicated an inaccessible address, as the Obligor is actually reachable at <https://konnycseppnelkul.hu/>, meaning that the called parties could not identify the data controller.

(111) According to Article 12(1) of the GDPR, it is the responsibility of the data controller to take appropriate measures to ensure that all information regarding the processing of personal data mentioned in Articles 13 and 14, as well as all notifications under Articles 15-22 and 34, are provided to data subjects in a concise, transparent, intelligible, and easily accessible form, clearly and understandably formulated.

(112) The system of appropriate information in the GDPR serves to ensure that the data subject is aware of which personal data will be processed, by which data controller, for what purpose, and how. This is essential for the data subject to be in a position to effectively exercise their rights.

(113) The brief information provided during the call must include the most important information regarding the planned data processing, including information about the identity of the data controller and the availability of the detailed notice. It is not the responsibility of the data subject to obtain information from other sources; it must be readily and reasonably available.

(114) According to Article 12(1) of the GDPR, the data controller has an active obligation to provide information in a manner that corresponds to the communication channel being used.

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(115) Based on the examined script, it can be established that it does not provide any information regarding the most important details mentioned earlier, and while it attempts to fulfill the information obligation by mentioning a website, it refers to a non-existent website.

(116) In light of the above, the Authority determined for the period specified in point III./5 that the Obligor did not provide information to the affected individuals regarding the processing of their personal data during the phone calls, thereby violating Article 12(1) and Articles 13(1)-(2) of the General Data Protection Regulation.

IV.

Legal Consequences

(117) Considering that the Obligor is currently still applying the data processing practice of making phone calls soliciting donations, it is necessary to require, pursuant to Article 58(2)(d) of the GDPR, that it align its data processing with the provisions of the GDPR. Data processing may only continue for appropriate, valid, and specific purposes, with a valid legal basis, and with proof of the maximum assurance of the rights of the data subjects; otherwise, the Obligor must demonstrate the cessation of data processing to the Authority within the deadline specified in the operative part.

(118) Based on Section 75/A of the Infotv., the Authority exercises its powers set out in Articles 83(2)-(6) of the GDPR with consideration of the principle of proportionality, particularly by addressing the first-time violation of the regulations regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily through a warning to the data controller or data processor, in accordance with Article 58 of the GDPR.

(119) In this context, the Authority considered all circumstances of the case based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Infotv. Given the circumstances of the case and the nature of the data processing, the Authority determined that a warning is not a proportional sanction in the case of the violation uncovered during this procedure; therefore, the Authority decided to impose a fine, taking into account Section 61(1)(a) of the Infotv. and Article 58(2)(i) of the General Data Protection Regulation.

(120) Regarding the necessity and amount of the fine, the Authority took into account that the Obligor's

last published net sales revenue, according to the official report published on the civil organizations' birosag.hu website, was 82,804,000 HUF in 2022 (94,832,000 HUF in 2021; 96,182,000 HUF in 2020). The possible maximum fine, based on Article 83(5)(a) and (b) of the General Data Protection Regulation, is 20 million EUR.

(121) The determination of the amount of the fine was based on the following considerations:

- (i) The Obligor's revenue in HUF falls within the revenue bracket below 2 million euros.
- (ii) In the case of violations falling under the fine category according to Article 83(5) of the General Data Protection Regulation, the maximum fine ranges between 0 and 8,000 EUR (approximately 3,000,000 HUF).
- (iii) The fine amount of 1,000,000 HUF established for the Obligor is approximately 1.2% of the annual global market turnover (revenue).

(122) In determining the amount of the data protection fine, the Authority considered the following as mitigating circumstances:

- (i) The Obligor acted negligently regarding the established violations. The GDPR requires at least minimal expertise from the data controller when processing personal data.

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wishes to process data. Therefore, if a violation occurs due to lack of expertise, it is considered at least negligent. In this case, there is no evidence indicating intent based on the activities of the Obligor and the circumstances revealed in the case. (GDPR Article 83(2)(b)).

- (ii) The Authority has not previously established a relevant data protection violation against the Obligor (GDPR Article 83(2)(e)).

(iii) The Authority took into account that the Obligor is a civil organization whose declared purpose is primarily to improve the medical equipment and general infrastructure of hospitals and clinics for the recovery of sick children, as well as to provide material and psychological assistance and support to sick children receiving hospital care and other needy individuals. The Obligor's goal also includes supporting sick children's foreign medical treatments and surgeries in material and other ways (GDPR Article 83(2)(k)).

(123) In determining the amount of the data protection fine, the Authority considered the following aggravating circumstances:

- (i) The Obligor processes a significant number of personal data of affected individuals (the attached copy of the register contains more than 21,000 affected individuals) related to fundraising, for an unclear purpose and legal basis (GDPR Article 83(2)(a)).
- (ii) The Obligor's data processing was aimed at contact-type personal data (name, phone number, address), and the Obligor also records the amount donated and the date of donation related to the affected individuals (GDPR Article 83(2)(g)).

(124) In making the decision regarding legal consequences, the Authority did not consider the points of Article 83(2) of the General Data Protection Regulation that were not detailed above to be relevant in this case.

(125) The amount of the data protection fine was determined by the Authority in the exercise of its discretion based on legislation.

(126) Based on the criteria set forth in this Section IV and all circumstances of the case, the Authority deemed the amount of the fine to be proportionate from both specific and general prevention perspectives. This assessment does not bind the Authority in other cases; the legal consequence – as highlighted in Guidelines paragraphs 145-146 – is determined in each case based on individual circumstances.

(127) The Authority publishes the decision with the name of the Obligor in consideration of the Obligor's activities and the affected individuals.

V.

Other issues:

(128) This decision is based on Sections 80-81 of the Administrative Procedure Act (Ákr.) and Section 61(1) of the Information Act (Infotv.). The decision becomes final upon its communication in accordance with Section 82(1) of the Ákr. According to Section 112 of the Ákr., and Section 116(1), as

well as Section 114(1), there is a right to legal remedy against the decision through administrative litigation.

(129) The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a) of the Kp., the Budapest Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., unless otherwise provided by law, the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(130) According to Section 29(1) of the Kp. and in consideration of this, Section 604 of the Civil Procedure Act (Pp.) applies, and according to Section 9(1)(b) of Act CCXXII of 2015 on Electronic Administration (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(131) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. exempts the initiating party from the prior payment of the fee under Section 59(1) and Section 62(1)(h).

(132) According to Section 38(2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to facilitate the free flow of personal data within the European Union. According to the same § (2a), the tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority in accordance with the provisions of the General Data Protection Regulation and this law concerning entities under the jurisdiction of Hungary. The Authority's jurisdiction extends to the entire territory of Hungary.

Budapest, January 30, 2024.

Dr. habil. Attila Péterfalvi

President, Professor Emeritus